



Fox Brothers Holdings Ltd
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Date: 8/4/2025

Dear James Smalley

**Letter of Nomination – Quarries Regulations 1999 – Regulation 8(1)(d)
Competent Individual to take charge of operations at Tong Quarry, Bacup**

Safety, Health and Environmental Responsibilities

You are appointed in accordance with Regulation 8(1)(d) of the Quarries Regulations 1999 to take charge of the operation of **Tong Quarry, Bacup** in the absence of the 8 (1) (c).

You are required to carry out your duties in accordance with the safety, health and environmental responsibilities outlined within the Company Health & Safety policy. These responsibilities may be revised from time to time, and you will be made aware of any changes.

You have control of the Quarry subject to instructions given to you by the 8 (1) (c) and are required to ensure that the Quarry is operated in accordance with all relevant statutory and Company requirements.

Should you find you are unable to comply with any of your duties or responsibilities you must cease any works being undertaken and you should bring the matter to the attention of myself immediately. Until a satisfactory resolution has been obtained no further works shall take place within the quarry operation.

You shall be enrolled in a course of training, education and knowledge to future ensure that you are able to demonstrate competence to a suitable standard as outlined within the company training matrix.

Where you have any doubts or shortfalls within your own competence limitations you must cease work immediately and do not undertake any further works until permission has been obtained by a competent person.

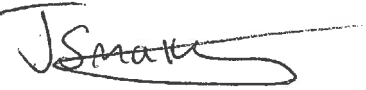
You have been provided with three copies of this appointment letter, will you please sign them all, retain one copy for your own personal records, file one copy in the Quarry H&S Document and return one copy to me.

Yours sincerely

Barry Thompson 8.1.(c)

Acknowledgement of Appointment

I acknowledge receipt of and understand my duties set out in this letter.

Signed 

Date 8/4/2025

Print Name James Smalley